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NETC 170 – IT Governance & Management

Module Six Assignment

Privacy Compliance Regulations and Laws

We read about eight important regulations and laws in privacy compliance this week: FERPA, CCPA, GDPR, COPPA, FCRA, and ECPA. These regulations cover a wide array of industries, services, and protections. They all have required security controls and indicate how to ensure compliance. The table below shares a description, the required security controls, and the party responsible for ensuring compliance for these six regulations and laws:

Privacy Law/Regulation	Description	Required Security Controls	Who is responsible for ensuring compliance?
FERPA (example)	U.S. law that protects the privacy of student education records.	Access controls, record management policies	Educational institutions and agencies.
CCPA	California State law that creates certain privacy rights for California consumers' information and how it is used by businesses.	Gives individuals rights to know how a business is using their information, the right to opt out, and the right to have the company delete this information; requires companies to have reasonable security practices regarding consumer data, such as encryption; requires companies to minimize how much data they collect, create policies for data retention and disposal, notice of	California Attorney General, California Privacy Protection Agency, individuals can file lawsuits for violations

		breach, consumer disclosures, and transparency in giving clear privacy notices to consumers.	
GDPR	EU law mandating that organizations and companies must use EU citizens' personal data in an integrity friendly way.	Transparency, efficiency and integrity in data handling, have a Data Protection Officer, keep a data inventory, set up processes to manage data breaches within 72 hours, Data Protection Impact Assessment	Data Protection Agencies located in each EU member state, individuals who suspect violations can make complaints or send tips to DPAs
COPPA	A US federal law that protects the privacy of children under the age of 13 by requesting parental consent for the collection of any personal information of the users.	Detailed privacy policy, verifiable parental consent for minors under 13, disclosure of collected data to parents, a right to revoke consent and delete information, protect the CIA of children's PII	The FTC can impose civil penalties for violators, state attorney generals can bring actions to federal district courts to enforce compliance, parents can file complaints
FCRA	US federal law that helps to ensure the accuracy, fairness, and privacy of the information in consumer credit bureau files	Limits access to owner of the file and only others with 'permissible purpose' to view it, requires accuracy and privacy of information, and gives consumers the right to: request and access their information, be informed if the	Consumer reporting agencies, state Attorney General, Federal Trade Commission, and Consumer Financial Protection Bureau

		information is used against them, dispute inaccurate information, and freeze their credit	
ECPA	A US federal law expanding laws protecting individuals from wiretapping and electronic eavesdropping	Requires at least single-party consent for recording conversations, prohibits individuals from attempting to electronically capture any kind of communication and from disclosing information gathered in this way, stored communications are protected from unlawful access, and there are restrictions on disclosure of communications.	Federal law enforcement (FBI, ATF), The FTC (as it relates to private businesses violating this act against consumers), Federal/State courts, Department of Justice

Sources

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